

22STCV29463 22STCV29463

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Case Number: 22STCV29463 Hearing Date: September 1, 2026 Dept: 529

RICKY THORSTENSEN VS CITY OF PALMDALE,
ET AL.

CROSS-DEFENDANT CITY OF PALMDALE'S MOTION FOR LEAVE TO TAKE
DEPOSITION OF CROSS-COMPLAINANT JJ MURPHY

Date of Hearing: September

1, 2026 Trial

Date: February

8, 2027

Department: 529 Case

No.: 22STCV29463

Moving Party: Defendants City of Palmdale and Keith Kang

Responding Party: Defendant/Cross-Complainant John J. Murphy

BACKGROUND

On June 28, 2023, Plaintiff Ricky

Thorstensen ("Plaintiff") filed a Second Amended Complaint ("SAC") against Defendants J.J. Murphy ("Defendant"); City of Palmdale; Keith Kang; and Does 1 to 100, inclusive. The SAC asserts six causes of action: (1) discrimination in violation of the Fair Employment and Housing Act ("FEHA"); (2) harassment in violation of the FEHA; (3) retaliation in violation of the FEHA; (4) failure to prevent discrimination, harassment, and retaliation; (5) violation of Labor Code section 1102.5; and (6) intentional infliction of emotional distress.

Plaintiff alleges he was discriminated against, harassed, and wrongfully terminated due to his age. Plaintiff worked for the City of Palmdale from May 24, 2021 through August 30, 2021. Defendant Murphy filed his Answer and a Cross-Complaint against Defendant City of Palmdale on May 1, 2024.

On June 1, 2026, Plaintiff Ricky Thorstensen filed a Request for Dismissal of the complaint.

[Tentative] Ruling

Cross-Defendant

City of Palmdale's Motion for Leave to Take Deposition of Cross-Complainant JJ Murphy is GRANTED.

ANALYSIS

Cross-Defendant

City of Palmdale moves this court for leave to take the deposition John J. Murphy on the grounds Murphy filed a Cross-Complaint against Cross-Defendant City of Palmdale and the substance of the Cross-Complaint has never been the subject of a deposition.

Any party may

obtain any discovery of information, documents, land, property, or electronically stored information so long as the discoverable matter is not privileged, is relevant to the subject matter and can lead one to admissible evidence. (CCP §2017.010.) Pursuant to section 2025.610 of the Code of Civil Procedure, "[o]nce any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent." (CCP §2025.610(a).) However, under subdivision (b) of the same provision, a subsequent deposition of a deponent is permitted upon leave of the Court for "good cause shown." (CCP §2025.610(b).)

Cross-Defendant

argues John J. Murphy's deposition was noticed by Plaintiff Thorstensen, and was based on the underlying claims by Plaintiff Thorstensen. The deposition took place on November 11, 2024 and December 6, 2024 for a total time of

approximately 5 and ½ hours. John J. Murphy filed a Cross-Complaint on May 1, 2024. Cross-Defendant contends the deposition was left open and Mr. Murphy's Cross-Complaint was not the subject of the deposition by Plaintiff Thorstensen. Accordingly, City of Palmdale now wishes to depose Mr. Murphy on the issue raised by his Cross-Complaint and seeks an order for leave to conduct Mr. Murphy's deposition under the following conditions: (1) Murphy's deposition is limited to the issues of defense and indemnity raised by his Cross- Complaint; (2) there will be no repetitive examination of topics already covered; (3) the deposition will last no more than four (4) hours; and (4) the deposition will be over online video conferencing/Zoom. Cross-Defendant claims if the deposition is not allowed, Cross-Defendant will be severely prejudiced in its ability to defend against Mr. Murphy's allegations in his Cross-Complaint.

Defendant and

Cross-Complainant Murphy argues Dr. John Murphy has already been deposed during which Defendant City of Palmdale had the opportunity to question Dr. Murphy about his cross-claims. By the time the deposition had occurred, the cross-claims had been pending for over six months. Nothing has changed and as a result, there is no good cause to require Dr. Murphy to submit to another deposition.

The court

notes in Palmdale's Reply, Palmdale states that on July 24, 2026—after Palmdale filed the instant motion—Murphy produced further discovery responses that demonstrates there is new evidence or changed circumstances that warrant another deposition. According to Palmdale, Murphy disclosed that many of his alleged requests for defense and indemnification were made orally, that he does not recall the specific dates of those communications, and that the oral requests were communicated to City representatives including Curley. Murphy further disclosed that, through his representatives, he orally responded to the City's January 23, 2023 letter by repeatedly demanding defense and indemnification and again identified Curley as a recipient of those communications.

Because new

factual issues have been raised after the deposition of Dr. Murphy occurred, the court finds good cause to warrant the subsequent deposition. (See *Carlson v. Superior Court of Los Angeles County* (1961) 56 Cal.2d 431, 434 emphasizing "[i]t would be an unwarranted limitation upon the discovery statutes to hold that they deny a litigant the right to inquire into matters relating to a new

factual issue merely because she has taken depositions prior to the existence of the facts giving rise to that issue.") The court finds denying a second deposition would leave Palmdale unable to fully investigate the factual basis for Murphy's affirmative claims, including the new information disclosed for the first time in discovery.

The court

also notes Palmdale contends the court need not adjudicate the document request as the parties can address any remaining document-production dispute through the procedures applicable to such discovery. As such, the court grants the motion as to the second deposition only.

Based on the

foregoing, Cross-Defendant City of Palmdale's Motion for Leave to Take Deposition of Cross-Complainant JJ Murphy is GRANTED.